		provisions or applications that can be given effect without the invalid provision or application." Benjamin Decl. Ex. 1 (DRA at 4). "If a contractual clause is found unconscionable, the court may, in its discretion, choose to do one of the following: (1) refuse to enforce the contract; (2) sever any unconscionable clause; or (3) limit the application of any clause to avoid unconscionable results. [Citation.] The 'strong legislative and judicial preference is to sever the offending term and enforce the balance of the agreement.' [Citation.] Though the 'statute appears to give a trial court some discretion as to whether to sever or restrict the unconscionable provision or whether to refuse to enforce the entire agreement,' it 'also appears to contemplate the latter course only when an agreement is "permeated" by unconscionability.'" *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 513. As discussed above, several aspects of the DRA are unconscionable. Defendant argues the court should sever any unconscionable provisions because "the central purpose of the DRA is lawful: to require bilateral arbitration of covered employment disputes." Reply at 8:17-18. To the contrary, as discussed above, the DRA appears drafted to require plaintiff to arbitrate an array of claims she might have against defendant and an undefined list of other entities and people, with defendant able to compel arbitration of claims against it and the other entities and people, and plaintiff only able to compel arbitration of claims by defendant against her. In addition, the agreement contains a plainly unenforceable waiver of an employee's right to bring PAGA claims. Remedying the deficiencies here would require substantive rewriting of the DRA to limit and contradict its plain language. Under these circumstances, the court declines to sever the unconscionable provisions and declines to enforce the agreement. Plaintiff's Evidentiary Objections (ROA 35) are overruled. Plaintiff to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed May 20, 2026 (ROA 37). The May 28, 2026 status conference is continued to <u>September 17, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
12	Thompson v. RC USA Holdings, Ltd., et al. 2023-01316096	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a $270,000 class action and PAGA settlement. The court grants the motion as follows:

		$5,000.00 for enhancement award to plaintiff (not to exceed); $81,000.00 for attorneys' fees (not to exceed); $15,500.00 for attorneys' costs (not to exceed); $8,500.00 for settlement administration fees (not to exceed); and $15,000.00 total PAGA penalties ($11,250.00 to LWDA). The final approval hearing is scheduled for October 8, 2026 at 2:00 p.m. in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. *See* Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
13 2:30 p.m.	The People of the State of California v. Abbott Laboratories, et al. 2016-00879117	Attorney Kevin Neylan's Motion to Appear Pro Hac Vice Attorney Kevin Neylan moves to appear pro hac vice for defendants Teva Pharmaceuticals USA, Inc. and Barr Pharmaceutical, LLC. For the following reasons, the unopposed motion is granted. The application is verified and/or supported by a declaration(s). It sets forth the applicant's residence and office addresses and California counsel's contact information. It states the applicant's courts and dates of admission and attests to the applicant's good standing. The application states there have been two prior applications in California state courts in the last two years. The accompanying Shipley Declaration states the application fee has been paid and the proof of service reflects service of the application on the State Bar of California via its online portal. Cal. R. Ct. 9.40(c)-(e). Defendants Teva Pharmaceuticals USA, Inc. and Barr Pharmaceutical, LLC to give notice.